

HOUSE No. 2464

The Commonwealth of Massachusetts

PRESENTED BY:

Sally P. Kerans

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to abandoned remains.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Sally P. Kerans</i>	<i>13th Essex</i>	<i>1/14/2025</i>

HOUSE No. 2464

By Representative Kerans of Danvers, a petition (accompanied by bill, House, No. 2464) of Sally P. Kerans relative to abandoned remains or dead bodies. Public Health.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 2208 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to abandoned remains.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 1 of Chapter 38 of the Massachusetts General Laws shall be
2 amended by adding the following definition:

3 “Abandoned Remains”- The remains or a dead body that no one has taken legal authority
4 of the body for a period of 15 days.

5 SECTION 2. Chapter 38 of the Massachusetts General Laws shall be amended by
6 inserting after Section 16, the following new Section:

7 Section 17. Notwithstanding any general or special law to the contrary, the office of the
8 chief medical officer shall accept for temporary storage abandoned remains, as defined in this
9 chapter, of persons who have died of natural causes in facilities licensed by the department of
10 public health under MGL Chapter 111 Section 71 or under MGL Chapter 111 Section 51 or other

11 facilities upon written request of the appropriate facility administrator, in the case of
12 abandonment, no designated next of kin, or written plan of disposition. The office may
13 subsequently release the body to the department of transitional assistance as allowed by Section
14 13 of this Chapter.